

APPLICATION FOR CREDIT TERMS WITH VSTECs BERHAD AND ITS SUBSIDIARIES

COMPANY INFORMATION

Name of Company:			
Registered Address:			
City:	State:	Post Code:	
Business Address:			
City:	State:	Post Code:	
Type of Company:	☐ Proprietorship ☐ Partnership ☐ Private Limited Co. ☐ Public Listed Co. ☐ Others, please state:		
Date of Registration/Incorporation:		Company Reg. No:	GST Reg. No:
Authorized Capital:		Paid-up Capital:	
Tax Identification Number:		MSIC Code:	SST No:
Nature of Business (Please provide brief description):			
Customer Type:	☐ Single Operation* ☐ Mix Operation** ☐ Chain Stores ☐ Large Format ☐ Cloud Subscription ☐ Cloud Consumption * Retails only ** Retails and project		

MAJOR/CONTROLLING SHAREHOLDING INFORMATION

SHAREHOLDERS / PARTNERS / PROPRIETOR

Name:	Number of Shares:	Percentage %

COMPANY DIRECTORS INFORMATION

Name:	NRIC:	Address:

SHAREHOLDING/ DIRECTORSHIP IN OTHER COMPANIES

SHAREHOLDERS / DIRECTORS OR PARTNERS / PROPRIETOR

Name:	Position:	Company Names of other Shareholding/ Directorship:	Number of Shares:	Percentage %

PRINCIPAL OFFICERS-IN-CHARGE INFORMATION

Name	Designation	NRIC	Qualification/Experience

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OFFICERS / CONTACT OF ACCOUNTS PAYABLE OFFICER/EXECUTIVE				
NAME	DESIGNATION	EMAIL ID	TELEPHONE/ HANDPHONE NO.	
NAME OF BRANCHES, SUBSIDIARIES, OR SHAREHOLDING IN OTHER ASSOCIATED COMPANIES				
Name	Address		Relationship	
BANKERS INFORMATION				
Name	Branch A/C No.	Type of Facility	Limit	Security
TRADE REFERENCES (AT LEAST TWO SUPPLIERS)				
Company Name		Contact Person	Telephone/Handphone No.	

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SUPPORTING DOCUMENTS REQUIRED FOR CREDIT EVALUATION

Documents (Please attach):

a.) For Proprietorship

- Business Reg. Certificate (Form D/ E)
- Latest 3 months bank statement of the listed banks
- Letter of personal guarantee (signed by proprietor)
- Acknowledgement of Anti-Bribery & Corruption Policy Letter
- TIN verification document – either from MyTax portal, LHDNM Acknowledgement Receipt or LHDNM Company Return Form.

b.) For Partnership

- Business Reg. Certificate (Form D/ E)
- Latest 3 months bank statement of the listed banks
- Letter of personal guarantee (signed by partners)
- Acknowledgement of Anti-Bribery & Corruption Policy Letter
- TIN verification document – either from MyTax portal, LHDNM Acknowledgement Receipt or LHDNM Company Return Form.

c.) For Private Limited Co.

- Memorandum and Articles of Association
- Forms 9/ Section 15, 13/ Section 28 (if any), 24/ Section 78, 25 (if any)/ Section 78 and 49/ Section 58
- Latest Audited accounts &/or Management accounts
- Latest 3 months bank statement of the listed banks
- Letter of personal guarantee (signed by at least 2 directors of Private Limited Company).
- Acknowledgement of Anti-Bribery & Corruption Policy Letter
- TIN verification document – either from MyTax portal, LHDNM Acknowledgement Receipt or LHDNM Company Return Form.

d.) For Public Limited Co.

- Memorandum and Articles of Association
- Forms 9/ Section 15, 13/ Section 28 (if any), 24/ Section 78, 25 (if any)/ Section 78 and 49/ Section 58
- Latest Audited accounts &/or Management accounts
- Latest 3 months bank statement of the listed banks
- Letter of corporate guarantee (signed by 2 directors) that authorised by Board of Resolution of Public Listed Co.
- Acknowledgement of Anti-Bribery & Corruption Policy Letter
- TIN verification document – either from MyTax portal, LHDNM Acknowledgement Receipt or LHDNM Company Return Form.

DECLARATION

I/We hereby declare that the information given in this application is true. Subject to entity of VSTECs Berhad and its subsidiaries (the "Company") approving our application, I/we agree that payment for my/our purchase of goods and/or services from the Company shall be subject to the following credit terms and conditions: -

- a) I/We will settle all outstanding debts when due, according to the term, bills, statement of accounts and invoices from the Company.
- b) I/We agree and allow the Company at its sole discretion to charge me/us interest at 1.5% per month calculated on daily rest on all overdue accounts and to settle such interest charges upon receipt of debit note(s) from the Company.
- c) The Company reserves the right to grant, review, and cancel all credit terms and demand in full settlement immediately of all outstanding sums at the absolute discretion of the Company without giving any reason, and notices whatsoever.
- d) I/We will abide by the general terms and conditions of sales of the Company that stated in your website.
- e) I/We agree for the Company and/or any person authorised by the Company to conduct credit and legal case checks on me/us with any business entities and/or with any credit reporting agencies.
- f) I/We will at the Company's request, charge or deposit with the Company as it shall decide, the document of title of any or all movable or immovable properties vested in me/us by way of security for the repayment of money under the credit terms granted or to be granted by the Company. The Company shall have a lien over all goods supplied by the Company to us/me until the prices for such goods have been fully paid.
- g) I/We undertake to inform the Company in writing within 14 days of any change in the nature of my/our present business, existing shareholders, shareholding and/or ownership of our company, directors, partners or management and/or control of our company.
 - a.) I/We shall not offer any of the unpaid stock supplied by the Company as security for any loan or other indebtedness due to third parties.
 - b.) I/We will promptly inform the Company in the event of any of the following:
 - 1) any legal proceeding, litigation or claims are made against me/us;
 - 2) I/we go into voluntary liquidation otherwise than for the purpose of reconstruction or amalgamation or an order of Court is made for my/our compulsory liquidation;
 - 3) a receiver is appointed over the whole or any part of my/our undertakings or assets;
 - 4) any composition or arrangement is made with my/our creditors;
 - 5) I/ we take any step to enter into bankruptcy, winding up, liquidation, administration, insolvency or analogous proceedings, or any other step being taken by any person with a view to any of those things.
- h.) I/We agree that the Company shall have the absolute discretion to amend the terms and conditions of the credit terms granted by the Company. In the event we do not agree to the amended terms and conditions, the Company shall at its absolute discretion, discontinue the credit terms granted to us and we will pay all sums owing to the Company immediately on demand.
- i.) Personal Data Protection
 - 1) The privacy notice of the Company and its group of companies (collectively, "VSTECs Group") may be accessed at <https://www.vstecs.com.my/terms.php> ("VSTECs' Privacy Statement"). By signing on this Application Form, I/we agree to the terms set out in VSTECs' Privacy Statement including such modifications and amendments to VSTECs' Privacy Statement from time to time.
 - 2) Where I am/we are individual(s), I/we consent to the processing of my/our personal data for the purposes and in the manner set out in VSTECs' Privacy Statement and this Application Form.
 - 3) I/We represent and warrant that I/we have obtained the consent of all the relevant individuals to the provision of their personal data to the Company as set out in this Application Form and the processing of their personal data for the purposes set out in VSTECs' Privacy Statement and this Application Form and for disclosure to such parties as set out in VSTECs' Privacy Statement and this Application Form.
 - 4) I/We undertake to notify the relevant directors, whose personal data is disclosed in this Application Form, of VSTECs' Privacy Statement.

- 5) I/We represent and warrant that all personal data provided in this Application Form is accurate, complete, up-to-date and not misleading. In the event I/we shall become aware of any such personal data may be inaccurate, incomplete, not up-to-date or misleading or any event shall occur or matter shall arise of which I/we become aware which results or likely to result in any such personal data being inaccurate, incomplete, not up-to-date or misleading, I/we undertake to notify the Company as soon as practicable.
- 6) Where:
- (i) any of the product or service providers which are involved in providing the products or services to me/us are located outside Malaysia; or
 - (ii) the products or services requested by me/us are provided from outside Malaysia; or
 - (iii) it is necessary for VSTECS Group to transfer any personal data to outside Malaysia for the provision of products or services to me/us or for any other purposes in relation or incidental to thereof,

I/we consent and shall procure the consent of all the relevant individuals, whose personal data is disclosed in this Application Form, to the transfer of their personal data to outside Malaysia.

For the purposes of this section, "personal data" and "processing" shall have the same meaning as set out in the Personal Data Protection Act 2010.

K.) These terms and conditions shall come into effect the date the Company approves in writing our application for credit terms.

I) I/we agree that all the above information provided is true and accurate.

m.) I/we declare that that I/we is committed to conduct its business dealings with principles and integrity and avoid any violation of anti-bribery and corruption.

I/We agree that all the term, conditions and covenants shall be binding upon the successors-in-title and assigns of the Company and our company.

Authorized Signature(s): By **All Directors of the applicant's company**

Name:	Signature by Director:
Name:	Signature by Director:
Name:	Signature by Director:
Name:	Signature by Director:
Name:	Signature by Director:
Company Stamp of applicant:	Date: